

STATE OF NEW YORK

5477--B

2025-2026 Regular Sessions

IN ASSEMBLY

February 14, 2025

Introduced by M. of A. DeSTEFANO -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT authorizing the town of Brookhaven to alienate certain parklands for use as a recharge basin and to dedicate other lands as replacement parklands

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subject to the provisions of this act, the town of Brookha-
2 ven, located in the county of Suffolk, acting by and through its govern-
3 ing body and upon such terms and conditions as determined by such body,
4 is hereby authorized to discontinue as parklands the lands more partic-
5 ularly described in section three of this act, for the purposes of
6 constructing a stormwater runoff and recharge basin.

7 § 2. The authorization provided in section one of this act shall be
8 effective only upon the condition that the town of Brookhaven dedicate
9 an amount equal to or greater than the fair market value of the park-
10 lands being discontinued towards the acquisition of new parklands and/or
11 capital improvements to existing park and recreational facilities.

12 § 3. The parklands authorized by section one of this act to be discon-
13 tinued as parklands are described as follows:

14 Parcel I

15 ALL that certain piece or parcel of land situate, lying and being near
16 Bellport, Town of Brookhaven, County of Suffolk, State of New York,
17 known and designated as Lots 55 through 64, inclusive, in Block 508, as
18 shown on a certain map entitled "Map number 3, 6 and 9 of New York and
19 Brooklyn Suburban Investment Company" and filed in the office of the
20 Clerk of Suffolk County on June 9, 1890 as number 444; also filed April

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD07351-04-5

1 9, 1890 as number 83 and April 15, 1892 as number 26 and being more
2 particularly bounded and described as follows:
3 Beginning at the corner formed by the intersection of the westerly side
4 of Hoffman Avenue and the southerly side of Patchogue Avenue;
5 Running thence South 4°-17'-00" West along the westerly side of Hoffman
6 Avenue 250.00 feet to a point;
7 Thence North 85°-43'-00" West a distance of 100.00 feet to a point;
8 Thence North 4°-17'-00" East a distance of 250.00 feet to the southerly
9 side of Patchogue Avenue;
10 Thence South 85°-43'-00" East along the southerly side of Patchogue
11 Avenue 100.00 feet to the westerly side of Hoffman Avenue and the point
12 or place of beginning.

13 Containing within said bounds 0.44 acres, more or less.

14 Parcel II

15 ALL that certain piece or parcel of land situate, lying and being near
16 Bellport, Town of Brookhaven, County of Suffolk, State of New York,
17 known and designated as Lots 25 through 32, inclusive, in Block 508, as
18 shown on a certain map entitled "Map number 3, 6 and 9 of New York and
19 Brooklyn Suburban Investment Company" and filed in the office of the
20 Clerk of Suffolk County on June 9, 1890 as number 444; also filed April
21 9, 1890 as number 83 and April 15, 1892 as number 26 and being more
22 particularly bounded and described as follows:

23 Beginning at the corner formed by the intersection of the easterly side
24 of Ecke Avenue and the southerly side of Patchogue Avenue;
25 Running thence South 85°-43'-00" East along the southerly side of Patchogue
26 Avenue 100.00 feet to a point;
27 Thence South 4°-17'-00" West a distance of 200.00 feet to a point;
28 Thence North 85°-43'-00" West a distance of 100.00 feet to the easterly
29 side of Ecke Avenue;
30 Thence North 4°-17'-00" East along the easterly side of Ecke Avenue
31 200.00 feet to the southerly side of Patchogue Avenue and the point or
32 place of beginning.

33 Containing within said bounds 0.58 acres, more or less.

34 § 4. In the event that the town of Brookhaven received any funding
35 support or assistance from the federal government for the purchase,
36 maintenance or improvement of the parklands set forth in section three
37 of this act, the discontinuance and alienation of such parkland authorized
38 by the provisions of this act shall not occur until the town of
39 Brookhaven has complied with any federal requirements pertaining to the
40 alienation or conversion of such parklands, including satisfying the
41 secretary of the interior that the alienation or conversion complies
42 with all conditions which the secretary of the interior deems necessary
43 to assure the substitution of other lands shall be equivalent in fair
44 market value and usefulness to the lands being alienated or converted.

45 § 5. This act shall take effect immediately.